

admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Set One of Exhibit A in Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

7. 9:00 AM CASE NUMBER: L25-05887

CASE NAME: BANK OF AMERICA N.A. VS. MARIA AGUILAR RODRIGUEZ

***HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

Plaintiff filed an amended Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), on 3/11/26.

Plaintiff attached the particular facts at issue, numbered One through Eight, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any

documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in the Attachment to Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

8. 9:00 AM CASE NUMBER: L25-06618

CASE NAME: TD BANK USA, N.A. VS. J BUSTILLOHERRERA

*HEARING ON MOTION IN RE: FOR ORDER DEEMING REQUEST FOR ADMISSIONS TO DEFENDANT ADMITTED

FILED BY:

***TENTATIVE RULING**

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

This Motion was originally scheduled for 2/24/26, but the court continued the matter to 3/24/26 because of a scheduling conflict. However, due to the inadvertent failure of the court to notify the parties of the 3/24/26, hearing, the court continued the Motion hearing to 6/2/26, 9am.

Background

Plaintiff attached the particular facts at issue, numbered One through Thirteen, in Exhibit One to the Declaration filed on 12/5/25, and titled, "Requests for Admission, Set One," as well as proof that they served Defendant with the discovery request, and declared